

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

(TANGA SUB-REGISTRY)

AT TANGA

DC. CRIMINAL REVISION NO. 000006375 OF 2025

(Originating from the Criminal Case No. 01 of 2023 of the District Court of Korogwe,
at Korogwe; Hon. J. Matinde, PRM)

PETER THOMAS BOCCO.....APPLICANT

VERSUS

THE REPUBLIC.....RESPONDENT

RULING

10th & 29th Dec, 2025

M. J. CHABA, J.

This application arises from Criminal Case No. 6375 of 2025 before the District Court of Korogwe, at Korogwe ("the trial court"). The applicant has invoked the jurisdiction of this Court under section 372(1) of the Criminal Procedure Act, [Cap. 20 R.E. 2022], now [R.E. 2023] ("the CPA"), seeking the following orders:

1. That, this Hon. Court be pleased to call for and revise the proceedings of the District Court of Korogwe, at Korogwe (the trial Court) for the purpose of satisfying itself as to the correctness, legality or irregularity of the proceedings; and
2. That, this Hon. Court be pleased to make any other order(s) it deems fit and just to grant.



The application is supported by an affidavit duly sworn by Mr. Yona Lucas, learned advocate for the applicant. In opposition, the respondent filed a counter-affidavit sworn by Ms. Sarah Daudi Wangwe, learned State Attorney.

At the hearing of the application, the parties, by consensus, agreed to dispose of the matter by way of written submissions, which arrangement was duly endorsed by the Court. Accordingly, the applicant's written submissions were drawn and filed by Mr. Yona Lucas, learned advocate for the applicant, while the respondent-Republic's submissions were drawn and filed by Ms. Sarah Daudi Wangwe, learned State Attorney.

The genesis of this matter may be succinctly stated as follows: The applicant was arraigned before the trial court facing four counts, namely; stealing by agent and forgery. When the charges were read over and fully explained to him, he pleaded not guilty to all the offences. The matter was thereafter fixed for trial, during which the prosecution called and presented at least seven (7) witnesses. The issue giving rise to the present application emerged during the testimony of PW7 (SSP Maria Tryphon Njenga), when she was subjected to cross-examination. According to the applicant, while his learned advocate was cross-examining PW7, the trial Magistrate intervened and barred the witness from answering a particular question on the ground that, the witness had not testified on the issue of forgery during her examination-in-chief.



Despite the learned advocate for the applicant having raised concerns regarding the manner in which the cross-examination was being conducted, concerns which the trial Magistrate initially acknowledged, the court nonetheless persistently restricted PW7 from responding to questions posed during cross-examination on the ground that, such matters had not been covered during examination-in-chief. The trial Magistrate further permitted the witness to deviate from directly answering the questions put to her.

The record further reveals that, learned counsel for the applicant applied for an adjournment on the basis that, the proceedings had gone on for a prolonged period, that he was fatigued and hungry, and that, several material questions remained unanswered. This application was declined by the trial Magistrate, notwithstanding the fact that, it was not opposed by the respondent-Republic. When directed to proceed with the cross-examination, learned counsel indicated that, he was unable to continue due to illness. Consequently, the trial Magistrate ordered the closure of the cross-examination, allowed the prosecution to proceed with re-examination, and thereafter closed and discharged the evidence of PW7.

Aggrieved by the foregoing, the applicant has instituted the present application, contending that: **first**, the trial Magistrate erred in law by unjustifiably limiting the applicant's advocate in the cross-examination of the prosecution witness; **second**, the trial Magistrate erred in law by conducting the proceedings in a manner suggestive of anger and bias against the

applicant and his advocate; **third**, the trial Magistrate erred in law by failing to record material portions of the testimony elicited during cross-examination on 6th March, 2025; and **fourth**, the trial Magistrate erred in law by denying the applicant the right to be heard, particularly by refusing to grant an adjournment on 6th March, 2025 despite the advocate's illness and the lateness of the hour.

On the other hand, the respondent-Republic has vehemently opposed the applicant's application through her counter affidavit and written submissions. Submitting to oppose the applicant's application, Ms. Sarah Mangwe, learned State Attorney has submitted as follows:

In response to the Applicant's contention that, the trial Resident Magistrate restricted the scope of cross-examination, the learned State Attorney contended that this allegation is a "myth." She directed the Court's attention to pages 144 to 147 of the typed proceedings, which clearly indicate that, after (PW7) concluded examination-in-chief, the Applicant's advocate was indeed afforded the opportunity to cross-examine the witness. Consequently, the respondent-Republic argued that this ground is factually incorrect and does not warrant revisional intervention.

The State Attorney, strongly refuted the claim that the trial Magistrate handled proceedings with unjustified anger or bias. She submitted that, the trial was conducted fairly and that the Magistrate maintained proper control over the courtroom. She added further that, these allegations are not



supported by the record of proceedings and the Applicant's counsel is attempting to mislead this Court with unproven claims.

Regarding the allegation that, the trial Magistrate failed to record material testimony during cross-examination on 6th March, 2025, the State Attorney maintained that, the record is a true reflection of what actually transpired in Court. Citing the case of **Athumani Msumi v. Mohamed Athumani Msumi** [2023] TZCA 147, the State Attorney accentuated that, court records are presumptively accurate and cannot be lightly impeached without concrete evidence to displace that presumption. He further argued that, the authority of **Mangalu Maduhu v. Republic** (Criminal Appeal No. 158/2022), relied upon by the Applicant, is distinguishable from the circumstances of this case.

Likewise, the respondent-Repondent dismissed the claim that, the Applicant was denied the right to be heard when an adjournment was refused on 6th March, 2025. She argued that, the record shows the Applicant's advocate proceeded with cross-examination, which was duly recorded, and the matter was subsequently adjourned to 9th April, 2025. She maintained that, no prejudice was suffered and the ground is baseless.

Finally, the State Attorney addressed the legal threshold for revision under section 394(1) of the Criminal Procedure Act, [CAP. 20 R.E. 2023]. Relying on the decision of the Court of Appeal in **Peter Michael Madereka v. R.**, Criminal Appeal No. 263 of 2022 (unreported), she argued that revision



is prohibited where it seeks to challenge preliminary or interlocutory orders that do not have the effect of finality. She concluded by submitting that, since the Applicant has not pointed to a decision or order that finally determined the criminal charge(s), the application is legally incompetent. She therefore, humbly prayed that, this Honourable Court be pleased to dismiss the application for revision in its entirety.

I have examined the records and considered the affidavit, counter affidavit, and submissions for and against this application. I find it patent to start with the concern raised by the respondent-Republic when concluding her submission which is about the competence of the applicant's application before me.

As disclosed in the chamber summons, this application is brought under section 372(1) of the Criminal Procedure Act, [Cap. 20 R.E. 2023], which provides that:

"The High Court may call for and examine the record of any criminal proceedings before any subordinate court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed, and as to the regularity of any proceedings of any subordinate court."

Under the above provision, the High Court is vested with supervisory powers to call for and examine proceedings of a subordinate court in order to



satisfy itself as to their legality, correctness, or propriety, including the regularity of the proceedings, even where no final decision or order has been made. In the present application, the applicant does not seek revision of any finding, sentence, or order of the trial court, but rather challenges the manner in which the proceedings were conducted. In that regard, the application is properly before this Court and is legally competent.

Having determined the issue of competence of the application, I now turn to consider the merits of the application. On the first ground, the applicant contends that, the trial Magistrate erred in law by limiting the applicant's advocate in cross-examining the prosecution witness. Without belabouring this complaint, I entirely agree with the respondent-Republic that the allegation is speculative and unsupported by the record. The proceedings of the trial court clearly show that, upon the closure of examination-in-chief of the seventh prosecution witness (PW7), the applicant's advocate was accorded an opportunity to cross-examine the witness. The record does not substantiate the assertion that, the applicant's advocate was unlawfully or unfairly restricted in the exercise of that right.

On the second ground, the applicant alleges that the trial Magistrate handled the proceedings with unjustified anger and bias against the applicant and his advocate. A careful perusal of the trial court record does not support this allegation. It is trite law that, allegations of bias must be proved by cogent evidence and cannot be founded on mere suspicion or perception. In

Mwesigwa Zaidi Siraji v. Mara Textile Limited, Civil Case No. 53 of 2021, the court emphasized that, a party alleging bias bears the burden of demonstrating that the judicial officer acted with partiality. In the present case, no such evidence has been placed before this Court. On the contrary, the record reflects that, the proceedings were conducted in an orderly and judicial manner. In the absence of proof to the contrary, I find no basis for the allegation of bias.

In respect of the third ground, the applicant's contention is that, the trial Magistrate erred in law for not recording some of the important testimonies of the respondent's witness while cross examined on the 6/03/2025. Having gone through the record of the application, indeed the recording by the trial Magistrate of the evidence during cross-examination fell short of what is required.

It is a trite law that, a proper recording of evidence at any stage of the proceedings where the questions asked by the examining party are not taken down, should mandatory be in the narrative form showing a full statement of the answer given by the witness in response to the question posed by the asking party, counsel or even the court. This will enable the appellate court upon appeal, to identify the soul of the questions put to the witness. See the case of **Mangalu Maduhu v. Republic**, Criminal Appeal No. 158 Of 2022 (unreported).

In the case at hand, I agree with the applicant that the manner in which the trial Magistrate recorded the evidence during cross-examination was improper. For instance, the record reflects that some of the witness's responses to the applicant's questions were not faithfully or fully captured. Instead, the trial Magistrate summarized or paraphrased the answers in a manner that does not accurately reflect the questions posed or the substance of the responses given. The following excerpt illustrates how the trial Magistrate recorded portions of the witness's answers during cross-examination. I quote:

"Court: Prayer granted.

-I examined whether the handwriting and signature in A1 and

A2 are identical, as that is what the letter instructed me to do

-It is correct.

-I cannot respond as correct or incorrect unless I provide an explanation.

-two distributed documents.

-cash payment voucher and cash book.

-Document/Handwriting Examiner.

-If there is a dispute, whether it has been rejected or forged.

-When a person denies that the document/handwriting is theirs.

-When a person denies their signature or handwriting, an examination is conducted.

-It is correct.

-That is the meaning.

-They are marked where they originated.

-It is not my responsibility to make the exhibits.

-It is correct.

-CPA CAP 20, 4th Schedule of the said Act.

-I am familiar with the Police General Orders.

-Not in relation to the issue of handwriting.

-Letters or numbers in different cases.

-It is correct.

-It is true.

-I received a letter from OCCID Korogwe.

-It is of importance.

-It is not correct; I have included it in my report.

-The information responds according to what I have done.

-It was requested by the OCCID of Korogwe.

-The expert is requested to provide professional opinions, and I am not instructed.

-I don't know.

-I was satisfied that they are subject to examination.

-I did not state that.

-These are different from what I examined; it is a machine used to examine embossments, for example, when you write and press, it appears on the underlying paper.

-I know how to use that equipment, the VSC600HS.

-04/08/2023.

-F4951 D/Sgt Donald.



-No.

-There is no obligation for him/her to be present.

-yes.

-It is correct.

-He provided me with these documents by letter."

End of quote.

The above manner of recording evidence, in my considered view, makes it impossible to discern which specific questions were posed to PW7 by learned advocate for the applicant during cross-examination. The record merely reflects a series of answers, such as "yes," without correlating them to the precise questions asked. Notably, some of the questions to which PW7 answered "yes" were not trivial; rather, they were material and potentially determinative, and their proper recording could have had a bearing on the probative value of the prosecution's case.

Such a mode of recording carries grave repercussions for the integrity of the proceedings at trial. As aptly stated by the renowned American Jurist and Scholar of the late 19th and early 20th century, **John Henry Wigmore**, cross-examination is, "the greatest legal engine ever invented for the discovery of truth." Where the questions and corresponding answers are not faithfully and intelligibly recorded, that engine is rendered ineffective, and the court is deprived of the opportunity to assess the true import of the evidence elicited.

In the circumstances, I find merit in the applicant's complaint that PW7's evidence during cross-examination was improperly recorded. The irregularity is not a mere procedural lapse but a fundamental defect which vitiates that part of the proceedings. Consequently, the proceedings in respect of the cross-examination of PW7 are a nullity.

Having reached this conclusion, I consider it unnecessary to address the remaining grounds of complaints raised in this application, as doing so would be a purely academic exercise.

That being so, and for the reasons stated above, this Court finds it appropriate to allow the application. Accordingly, by invoking the revisionary powers vested in this Court under section 372(1) of the Criminal Procedure Act, [CAP. 20 R.E. 2023], I hereby nullify and expunge from the record the proceedings of the District Court of Korogwe, at Korogwe conducted and recorded on 6th March, 2025. I further order that, the said proceedings be conducted afresh, in full compliance with the applicable procedural requirements of the law.

As regards the issue of whether the presiding Magistrate should recuse herself from further conduct of the case, this Court finds that such a prayer is misplaced at this stage. The question of recusal is, in the first instance, a matter to be raised before and determined by the trial court itself, in accordance with the established legal procedures. The applicant is therefore at liberty to present such a request personally or through appropriate formal



channels before the trial Magistrate, should he deem it necessary. **Order accordingly.**

DATED at **TANGA** this 29th day of December, 2025.



M. J. Chaba

JUDGE

29/12/2025

Court:

Ruling to be delivered by the Hon. M. K. Rashid, Ag. Deputy Registrar of the High Court of Tanzania, Tanga Sub-Registry.



M. J. Chaba

JUDGE

29/12/2025

Court:

Ruling delivered under my Hand and the Seal of the Court in Chambers this 29th day of December, 2025 through the Virtual Court facility, in the presence of Mr. Yona Lucas, learned advocate for the Applicant, Peter Thomas Bocco and Mr. Christopher Waikama, learned State Attorney for the Respondent-Republic, and in the absence of the Applicant.



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M. K. RASHID, Ag. DR

29/12/2025

Court:

Right of the parties, fully explained.



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M. K. RASHID, Ag. DR

29/12/2025

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